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File No.: EXP202309790

RESOLUTION OF TERMINATION OF THE PROCEDURE BY VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On June 7, 2024, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against AXA REAL ESTATE INVESTMENT MANAGERS IBERICA S.A. and SEUR GEOPOST, S.L. (hereinafter, the defendant), through the Agreement that is transcribed:

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File No.: EXP202309790

AGREEMENT TO INITIATE SANCTIONING PROCEDURES

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On May 26, 2023, a data security breach was notified to the Technological Innovation Division of this Agency by AXA REAL ESTATE INVESTMENT MANAGERS IBERICA S.A. with NIF A78465267 as the data controller.

This notification states the following:

Date of the events: 05/11/2023

Date of breach detection: 05/24/2023

The facts subject to the breach of confidentiality are as follows:

As a result of the notification to the Technological Innovation Division of this Agency of a breach by AXA REAL ESTATE INVESTMENT MANAGERS IBERICA S.A., (...), the General Subdirectorate of Data Inspection is ordered to carry out the appropriate preliminary investigations in order to determine a possible violation of data protection regulations.

This notification is summarized as follows:

(...)

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SECOND: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following aspects:

Regarding the companies

The notifying entity is a Spanish public limited company subsidiary of the AXA Group whose parent company is AXA REAL ESTATE INVESTMENT MANAGERS S.A. According to the data available in AXESOR, it has 23 employees and a sales volume of more than 7 million euros, and its activity is "Management and administration of real estate."

SEUR GEOPOST SLU is a Spanish limited company parent of the group. According to the data available in AXESOR, it has 2094 employees and a sales volume of more than 600 million euros, and its activity is "Other postal and courier activities."

Information and documentation have been requested from the notifying entity and SEUR, and from the responses received, the following is inferred:

Regarding the chronology of the events. Actions taken to minimize adverse effects and measures adopted for final resolution

(...).

Regarding the causes that made the breach possible

(...).

Regarding the affected data

(...).

Regarding the contract with SEUR

(...)

Regarding the security measures implemented

AXA has submitted the following security documentation:

☐

(...)

In relation to the measures implemented after the incident:

☐

(...)

Information on the recurrence of these events and the number of analogous events that have occurred over time

There have been no previous security incidents

THIRD: The entity AXA REAL ESTATE INVESTMENT MANAGERS S.A., whose activity is

"Management and administration of real estate," has a sales volume of more than 7 million euros

(7,843,146 euros)

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I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

The GDPR in its Article 4 establishes that "the following shall be understood as:

1) "personal data": any information relating to an identified or identifiable natural person ("the data subject"); an identifiable natural person is one whose identity can be determined, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;

2) "processing": any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination, or any other form of enabling access, alignment, combination, restriction, erasure, or destruction;

(...)

7) "data controller" or "controller": the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; where the law of the Union or of the Member States determines the purposes and means of processing, the controller

or the specific criteria for its designation may be established by the law of the Union or of the Member States;”

AXA REAL ESTATE INVESTMENT MANAGERS IBERICA S.A. as the data controller, notified the Division of Technological Innovation of this Agency of a data security breach detected on May 24, 2023, but occurring on May 11, 2023, (...).

III

Article 32 of the GDPR

Article 32 of the GDPR establishes the following regarding the security of processing:

“1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying likelihood and severity for the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which shall include, among others:

- a) the pseudonymization and encryption of personal data;
- b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;
- c) the ability to restore the availability and access to personal data in a timely manner in the event of a physical or technical incident;
- d) a process for regularly testing, assessing, and evaluating the effectiveness of technical and organizational measures to ensure the security of processing.

2. In assessing the appropriateness of the level of security, account shall be taken particularly of the risks presented by the processing, in particular as a result of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may be used as an element to demonstrate compliance with the requirements set out in paragraph 1 of this article.

4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data only processes such data on instructions from the controller, unless he or she is required to do so by Union or Member State law.”

It should be noted that the GDPR in the aforementioned provision does not establish a list of security measures applicable according to the data being processed, but rather establishes that the controller and the processor shall implement technical and organizational measures that are appropriate to the risk posed by the processing, taking into account the state of the art, the costs of implementation, the

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nature, scope, context, and purposes of the processing, the probability and severity risks to the rights and freedoms of the data subjects.

Furthermore, the security measures must be adequate and proportionate to the detected risk, indicating that the determination of technical and organizational measures must be made considering: pseudonymization and encryption, the ability to ensure confidentiality, integrity, availability, and resilience, the ability to restore availability and access to data after an incident, verification process (not audit), evaluation, and assessment of the effectiveness of the measures.

In any case, when assessing the adequacy of the level of security, particular attention shall be paid to the risks presented by the data processing, such as the destruction, loss, or accidental or unlawful alteration of personal data transmitted, stored, or otherwise processed, or unauthorized communication or access to such data that could cause physical, material, or immaterial harm.

In this same sense, Recital 83 of the GDPR states that:

“(83) In order to maintain security and prevent processing from infringing the provisions of this

Regulation, the controller or processor must assess the risks inherent in the processing and implement measures to mitigate them, such as encryption. These measures must ensure an adequate level of security, including confidentiality, taking into account the state of the art and the costs of their implementation in relation to the risks and the nature of the personal data to be protected. When assessing the risk in relation to data security, the risks arising from the processing of personal data must be taken into account, such as the destruction, loss, or accidental or unlawful alteration of personal data transmitted, stored, or otherwise processed, or unauthorized communication or access to such data, which may in particular cause physical, material, or immaterial harm.”

The responsibility of the respondent is determined by the lack of security measures adopted for this specific case, with its peculiarities, as they are responsible for making decisions aimed at effectively implementing the appropriate technical and organizational measures to ensure a level of security adequate to the risk to ensure the confidentiality of the data, restoring its availability and preventing access to it in the event of a physical or technical incident.

Therefore, this Agency considers that Article 32 of the GDPR may have been violated, as the entity being complained about failed to comply with the obligation to implement appropriate technical and organizational security measures to ensure, in this specific case, with the special characteristics it may present, an adequate level of security by including the access key to the USB in the same envelope. In the present case, AXA sent by postal courier, in an envelope, a USB containing data of 143 individuals, including payment methods. The USB was encrypted, but the password was inside the envelope.

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It has been indicated that the returned envelope arrived, but without the USB or the password inside. These facts demonstrate a lack of measures to include the password inside the envelope.

AXA has indicated the following as pre-existing measures and corrective actions taken:

“1) Internal Information Security Procedure AXA REIM has an information security procedure implemented at the company level.

This includes a section related to “Transfer of physical media,” which states the following obligation for employees: “When transferring secret or confidential data physically, the use of physical media should be avoided as much as possible.

The secure transfer of files should be used as the preferred means. If physical media are sent, they must be encrypted or subjected to strict physical controls.

Encrypted media must be sent separately from the decryption keys.”

Therefore, prior to the incident, AXA REIM had adopted measures aimed at maintaining the confidentiality of personal data stored on physical media.

On the other hand, it should be emphasized that the usual procedure within the company for transferring information is via electronic means, avoiding the sending of physical media as much as possible.

However, in this specific case, and at the request of the insurer Acquinex, it was necessary to carry out, on a punctual and isolated basis, the sending of the information through this means.

2) Information Security Training All employees of AXA REIM receive appropriate training and awareness regarding the company's policies and procedures, as applicable to their job position, as well as periodic updates of these policies and procedures.

Specifically, all employees (including the one who placed the USB in the envelope) received initial training on information security upon joining AXA REIM and annually thereafter.

However, in light of recent events, an internal evaluation is being conducted on how to more effectively communicate these obligations to employees, in order to avoid, as much as possible, this type of action and to further raise awareness among all staff.

3) Supplier Risk Analysis As a usual procedure, within AXA REIM, before incorporating a new supplier, a risk analysis is carried out to assess the feasibility of their hiring and whether they meet the

requirements set by regulations on personal data protection.

This analysis determines the level of risk that the treatments performed by the supplier will pose to the rights and freedoms of the data subjects, so that AXA REIM can assess the sufficiency of the security measures applied.

After conducting the corresponding risk analysis regarding the communication of data to SEUR, as a messaging and transport entity, the result was that the communication posed a low risk from the perspective of personal data processing.

In light of the above, AXA REIM proceeded to hire this supplier, which had adequate security mechanisms to preserve the confidentiality of the information and the privacy of the data.

New measures adopted to mitigate the effects of a potential incident:

1) Awareness of the involved user Following the security incident, the employee responsible for placing the information in the envelope has been contacted to remind and warn them of the importance of complying with these guidelines, to which the involved person reacted appropriately, committing to follow the instructions and collaborating at all times to avoid future incidents.

2) Monitoring of the dark web AXA REIM has adopted as a mitigating measure for 2 months to carry out cyber monitoring, with the aim of probing the dark web to verify that the information and personal data stolen from the USB are not being used fraudulently (identity theft, financial losses, phishing, etc.).

In the event that during this monitoring period any similarity is detected with the information contained in the USB device, an alert will trigger informing of a possible illicit action by a third party.

3) Communication to the affected parties Communication has been sent to the affected parties indicating the measures being adopted in response to the breach, as well as those that the users themselves can take to reduce risks.

4) Reports and follow-up Continuous monitoring of the incident is being conducted by the DPO, and this incident assessment report has been prepared by the AXA REIM IT Security team to update the information on the status of the incident.

This report is complemented by the attached report as Evidence 15, which details the status of the situation regarding the web monitoring of any potential leak, as well as the tools used.

5) Change of supplier

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Due to the incident detected in the transportation of the USB device, it has been decided to hire a new provider for the shipment, which will be carried out by Correos.

For all these reasons, in accordance with the evidence available at this moment in the initiation agreement of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that there is sufficient evidence regarding the absence of adequate security measures in the processing by the claimed party of the data included in the encrypted USB by including the access key in the same envelope.

Therefore, the known facts could constitute an infringement attributable to the claimed party for violation of Article 32 of the GDPR.

IV

Qualification of the infringement of Article 32 of the GDPR

If confirmed, the aforementioned infringement of Article 32 of the GDPR could imply the commission of the infringements classified in Article 83.4 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 2% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43; (...)" In this regard, the LOPDGDD, in its Article 71 "Infringements" establishes that "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

For the purposes of the statute of limitations, Article 73 "Infringements considered serious" of the LOPDGDD indicates:

"Based on what is established in Article 83.4 of Regulation (EU) 2016/679, the following are considered serious and shall be subject to a two-year statute of limitations: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

f) The failure to adopt those technical and organizational measures that are appropriate to ensure a level of security adequate to the risk of processing, as required by Article 32.1 of Regulation (EU) 2016/679."

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Proposal for sanction

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

"1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 is, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage suffered;

b) the intent or negligence in the infringement;

c) any measures taken by the controller or processor to mitigate the damage suffered by the data subjects;

d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they had implemented in accordance with Articles 25 and 32;

e) any previous infringement committed by the controller or processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;

g) the categories of personal data affected by the infringement;

h) the manner in which the supervisory authority became aware of the infringement, in particular, whether the controller or processor notified the infringement and, if so, to what extent;

i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, compliance with those measures;

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42;

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement."

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For its part, Article 76 "Sanctions and corrective measures" of the LOPDGDD states:

"1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The ongoing nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party."

Sanction for infringements of Article 32 of the GDPR.

In accordance with the transcribed provisions, and without prejudice to what results from the instruction of the procedure, for the purpose of determining the amount of each sanction for each infringement, each fine is graduated taking into account:

As circumstances to consider:

Article 83.2.a) GDPR: "the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of affected parties and the level of damage and harm suffered," since the facts subject to this sanctioning procedure reveal deficiencies in the management of the claimed entity.

In the initial notification made by ALLIANZ regarding the security breach that occurred, said entity informs the AEPD that 150 individuals are affected; however, it subsequently indicates that it has sent 143 notifications of the 150 that it should have sent, and in the additional notification sent by ALLIANZ, it states that the number of affected individuals is 800.

Article 83.2.b) GDPR: "intentionality or negligence in the processing of data" since it has been confirmed that a storage medium containing personal data was lost, along with the key that allowed access to the data contained therein.

Article 83.2.g) GDPR: "the categories of personal data affected by the infringement," since the activity of the claimed entity requires continuous processing of personal data, including, among others, ID numbers, payment methods, and rental addresses. Furthermore, the claimed entity performs a high volume of personal data processing for the development of its activity.

Considering the factors presented, the initial assessment of the amount of the fine is €100,000 for the infringement of Article 32 of the GDPR, regarding the security of personal data processing.

VI

Liability

Law 40/2015, of October 1, on the Legal Regime of the Public Sector, establishes in Chapter III relating to the "Principles of Sanctioning Power," in Article 28 under the heading "Liability," the following:

"1. Only individuals and legal entities may be sanctioned for acts constituting administrative infringement, as well as, when a law recognizes their capacity to act, groups of affected parties, unions, and entities without legal personality and independent or autonomous assets, that are found responsible for the same by way of intent or negligence."

The lack of diligence in implementing appropriate security measures resulting in the breach of the principle of confidentiality constitutes the element of culpability.

VII

Measures

If both infringements are confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust its actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2.d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified timeframe...”. The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

Specifically, in this case, the measures would consist of notifying within two months from the receipt of the resolution issued, that the entity responsible for the processing of personal data complies with the provisions of this Regulation, to ensure confidentiality, integrity, availability, and resilience, as well as the ability to restore the availability and access to the data.

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personal after an incident such as the one at hand, as well as having an appropriate process for verification, evaluation, and assessment of the effectiveness of such measures, in accordance with Article 32 of the GDPR.

It is noted that failure to comply with the requirements of this body may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning procedures.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,
IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against AXA REAL ESTATE INVESTMENT MANAGERS IBERICA S.A., with NIF A78465267, for the alleged infringement of Article 32 of the GDPR, classified in accordance with the provisions of Article 83.4 of the GDPR, qualified as serious and for the purposes of prescription in Article 73 f) of the LOPDGDD.

SECOND: TO APPOINT R.R.R. as instructor and S.S.S. as secretary, indicating that either of them may be recused, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the complainant and its documentation, as well as the documents obtained and generated by the General Subdirectorate for Data Inspection in the proceedings prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be €100,000 (one hundred thousand euros) for the infringement of Article 32 of the aforementioned GDPR, regarding the security of the processing of personal data.

FIFTH: TO NOTIFY this agreement to AXA REAL ESTATE INVESTMENT MANAGERS IBERICA S.A., with NIF A78465267, granting a hearing period of ten working days for it to submit allegations and present any evidence it deems appropriate. In its written allegations, it must provide its NIF and the file number indicated in the heading of this document.

If no allegations are made against this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, it may acknowledge its responsibility within the period granted for the formulation of allegations to this initiation agreement; this will entail a 20% reduction of the

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sanction that may be imposed in the present procedure. With the application of this reduction, the sanction would be set at 80,000 euros, resolving the procedure with the imposition of this sanction. Likewise, at any time prior to the resolution of this procedure, the voluntary payment of the proposed sanction may be made, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at [Insert the corresponding text for 80,000 euros and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one that corresponds to be applied for the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to submit allegations regarding the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions were to be applied, the amount of the sanction would be set at [Insert the corresponding text for 60,000 euros.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or waiver of any action or appeal in the administrative route against the sanction.

In the event that you choose to proceed with the voluntary payment of either of the amounts indicated above, 80,000 or 60,000 euros, you must make it effective by depositing it into account no. IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are adhering.

You must also send the proof of deposit to the General Inspection Subdirectorate to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of twelve months from the date of the agreement to initiate or, where appropriate, from the draft agreement to initiate. After this period, it will expire, and consequently, the file will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

In compliance with Articles 14, 41, and 43 of LPACAP, it is warned that, henceforth, notifications sent to you will be made exclusively electronically by appearance at the electronic headquarters of the General Access Point of the Administration or through the single Enabled Electronic Address and that, if you do not access them, your rejection will be recorded in the file, considering the procedure completed and continuing with the process. You are informed that you can identify an email address before this Agency to receive the notice of the availability of notifications and that the lack of practice of this notice will not prevent the notification from being considered fully valid.

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Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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SECOND: On June 17, 2024, the respondent has proceeded to pay the sanction in the amount of 80,000 euros using one of the two reductions provided for in the previously transcribed Initiation Agreement. Therefore, the acknowledgment of responsibility has not been accredited.

THIRD: The payment made entails the waiver of any action or appeal in the administrative route against the sanction, in relation to the facts referred to in the Initiation Agreement.

FOURTH: The Initiation Agreement transcribed above indicated that it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust its actions to the regulations mentioned in this act, in accordance with the provisions of the cited Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified time frame...”.

LEGAL GROUNDS

I

Competence

In accordance with the powers that Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) grants to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: “The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

Termination of the procedure

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Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading “Termination in sanctioning procedures” provides as follows:

“1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another of a non-pecuniary nature but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which are cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided in this section may be increased by regulation.”

Having proceeded with the payment of the pecuniary sanction, in accordance with paragraph 2 of this article, voluntary payment implies the termination of the procedure, except regarding the restoration of the altered situation. Therefore, it is necessary to impose the measures required to cease the conduct or correct the effects of the infringement.

In accordance with the above, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202309790, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO ORDER AXA REAL ESTATE INVESTMENT MANAGERS IBERICA S.A. and SEUR GEOPOST, S.L. to notify the Agency within 2 months from the date this resolution becomes final and enforceable, of the adoption of the measures described in the legal grounds of the initiation Agreement transcribed in this resolution.

THIRD: TO NOTIFY this resolution to AXA REAL ESTATE INVESTMENT MANAGERS IBERICA S.A.

and SEUR GEOPOST, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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